

24NNCV04195 24NNCV04195

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-09-08

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Case Number: 24NNCV04195 Hearing Date: September 8, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

NICHOLAS GLOVER, an individual,

Plaintiff,

vs.

THE ONCOLOGY INSTITUTE OF HOPE

AND INNOVATION PATIENT SAFETY ORGANIZATION, LLC, a California corporation;

and DOES 1 through 100, inclusive,

Defendants.

Case

No.:

24NNCV04195

Hearing

Date:

September

8, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO VACATE AND SET ASIDE CLERK'S ENTRY OF DEFAULT ON
CROSS-COMPLAINT

MOVING PARTY: Plaintiff Nicholas Glover

RESPONDING

PARTY: Defendant The Oncology

Institute of Hope and Innovation Patient Safety Organization, LLC

The Court

considered the moving papers, opposition and reply filed in connection with the
instant motion.

BACKGROUND

On September 11, 2024,

Plaintiff Nicholas Glover ("Plaintiff") filed a complaint against Defendant The
Oncology Institute of Hope and Innovation Patient Safety Organization, LLC
("Defendant"), alleging causes of action for (1) retaliation in violation of
California government code section 12945.2, (2) retaliation in violation of
California government code section 12940, subdivision (h), (3) race
discrimination in violation of FEHA, (4) discrimination in violation of
California government code section 12940, subdivision (a), (5) harassment in
violation of California government code section 12940, subdivision (j), (6)
failure to prevent discrimination, harassment, and retaliation of FEHA, (7)
retaliation in violation of labor code section 1102.5, (8) wrongful
termination, (9) intentional infliction of emotional distress, and (10)
negligent infliction of emotional distress. These causes of action arise from
Plaintiff's time as an employee with employer Defendant and Plaintiff's alleged
wrongful termination.

On November 4, 2024, Defendant filed an
answer to Plaintiff's complaint.

On July 1, 2026, the Court found the instant case and Toi Management, LLC, A California Company vs. Nicholas Glover, Los Angeles Superior Court no. 25NNCV05743 (the "Related Case"), related within the meaning of California Rules of Court, rule 3.300(a). The Court determined that the instant case is the lead case.

On July 14, 2026, the Court entered default in favor of Toi Management, LLC, now known as Starling Oncology Management, LLC ("Toi"), against Plaintiff in the Related Case.

On August 17, 2026, Plaintiff filed the instant motion to vacate and set aside entry of default.

On August 18, 2026, Plaintiff filed a first amended motion to vacate and set aside entry of default.

On August 25, 2026, Defendant filed an opposition.

On August 28, 2026, Plaintiff filed a reply.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (b) states: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief ... shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any ... dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or

parties.”¿

DISCUSSION

Plaintiff moves for an order vacating and setting aside the entry of default entered on July 14, 2026 in the Related Case pursuant to Code of Civil Procedure section 473, subdivision (b).

Preliminarily, the Court notes that Plaintiff incorrectly filed the instant motion under the docket for instant case, case no. 24NNCV04195, and not the Related Case. Likewise, Plaintiff incorrectly claims that the Court “consolidated” the instant case and the Related Case. (Glover Decl., ¶ 2.) Plaintiff believed that the Court’s order meant the cross-complaint in the Related Case was automatically absorbed into the instant action. (Glover Decl., ¶ 2.) However, in its July 1, 2026 Minute Order, the Court stated that it found the cases to be related within the meaning of California Rules of Court, rule 3.300(a). The Court did not “consolidate” the matters and their respective dockets into one action.

The Related Case involves Plaintiff and Toi, a separate entity who is not a party to the instant action. In the Related Case, the Court entered judgment in favor of Toi against Plaintiff. Plaintiff filed proof of service on Defendant, but Plaintiff has not filed proof of service on Toi. Defendant notes in opposition that it responds to the instant motion solely because Plaintiff filed it in this action, but states that it is not a party to the Related Case. (Opp., 2:11-19.) Toi has yet to be properly served with notice of the instant motion. Therefore, the party who obtained default remains unserved without notice of the motion.

Accordingly, the Court denies the instant motion and directs Plaintiff to file the motion in the proper action and properly serve the correct party to give them notice and opportunity to respond before it is considered on its merits.

CONCLUSION

Based on the foregoing, the Court DENIES Plaintiff Nicholas Glover’s motion to vacate and set aside entry of default.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 8, 2026

Sarah
J. Heidel

Judge
of the Superior Court